

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008688

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JONAS OPPEDAL

vs.

DEFENDANT: RIVIAN AUTOMOTIVE LLC,
A DELAWARE LIMITED LIABILITY
COMPANY

NATURE OF PROCEEDINGS: 1) MOTION – COMEPL - DISCOVERY FACILITATOR
PROGRAM

2) MOTION – COMPEL ARBITRATION

RULING

Defendant Rivian Automotive LLC’s motion to compel arbitration is **GRANTED**. This action is stayed pending resolution of the arbitration.

Allegations in Plaintiff’s Complaint

Plaintiff Jonas Oppedal filed his Complaint against Defendant Rivian Automotive LLC (“Rivian Automotive”) on December 30, 2025, alleging that on September 25, 2023, he purchased a 2023 Rivian R1S (the “Vehicle”). Plaintiff alleges the Vehicle was delivered to Plaintiff with serious defects which were covered by the warranty. These include electrical defects, interior component defects, exterior and body component defects, and suspension system defects. Plaintiff asserts three causes of action against Rivian Automotive alleging violations of the Song-Beverly Act.

The Purchase Agreement

Rivian Automotive seeks to compel arbitration under the Purchase Agreement and Rivian Motor Vehicle Purchase Agreement executed by Plaintiff (the “Purchase Agreement”). The first paragraph of the Purchase Agreement states that it is a binding contract between Plaintiff and “RIVIAN, LLC (“RIVIAN”, “WE”, “US” OR “OUR”)”. Paragraph 16 provides in part:

16. DISPUTE RESOLUTION – ARBITRATION, CLASS ACTION WAIVER

Binding Arbitration. To the fullest extent permitted by applicable law and except for small claims or if You choose to opt-out as provided below, You and Rivian agree to resolve any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement or Our relationship, including advertising and other communications between You and Rivian,

Rivian products or services, and as applicable, Your credit application, or the purchase or condition of the Vehicle (a “Dispute”) by binding arbitration conducted by the American Arbitration Association (“AAA”) in accordance with the AAA Consumer Arbitration Rules, unless You and We agree otherwise. For more information on arbitration and to access the AAA Consumer Arbitration Rules, please visit: www.adr.org. If the AAA Consumer Arbitration Rules conflict with this Agreement, then this Agreement shall control. **You and We understand that we are both waiving our rights to go to court (other than small claims court, as provided below), to present our claims to a jury and to have claims resolved by a jury trial, and also that judicial appeal rights, if any, are more limited in arbitration than they would be in court**

Applicable Law. This Section 16, Dispute Resolution – Arbitration and Class Action Waiver, its subject matter, formation and enforceability will be governed by the Federal Arbitration Act as interpreted by the federal courts, and not any state law regarding arbitration

Opt-Out Right. You may opt-out of this Section 16, Dispute Resolution – Arbitration and Class Action Waiver within 30 days from the date You electronically sign this Agreement, by sending an email to optout@rivian.com from the email associated with Your Rivian ID with “Opt-Out of Arbitration” in the subject line and, in the body of the email, Your full name and address. You agree that any request will not apply to subsequent agreements between You and Rivian unless the other agreement provides an option to opt out and You follow the requirements outlined in that agreement.

(Declaration of Caitlin Bethlahmy (“Bethlahmy Decl.”), Exh. A.) Rivian Automotive argues that there is no evidence Plaintiff opted out of this arbitration provision.

Plaintiff does not dispute that he executed the Purchase Agreement and that he did not opt out and argues that Rivian Automotive does not have standing to compel arbitration under this agreement because it is not a party to the agreement. The only parties to the Purchase Agreement are Plaintiff and Rivian, LLC. In paragraph 13, Rivian, LLC expressly disclaims warranties. (*Id.*)

Rivian Automotive argues that it can enforce the arbitration provision in the Purchase Agreement under the doctrine of equitable estoppel. Under this doctrine, “a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are intimately founded in and intertwined with the underlying contract obligations . . . The reason for this equitable rule is plain: One should not be permitted to rely on an agreement containing an arbitration clause for its claims, while at the same time repudiating the arbitration provision contained in the same contract.” (*DMS Services, LLC v. Superior Court* (2012) 205 Cal.App.4th 1346, 1354 [citations and internal quotations omitted].) “It is not enough that a complaint simply refers to a contract; the claims must be founded on the contract. Nor is it sufficient that a complaint alleges collusion between a signatory and nonsignatory defendant, or that the controversy would not have occurred but for the existence of the contract, provided the contract is not the basis for the claims against the nonsignatory. In these situations, the policy rationale for equitable estoppel—relying on an agreement for one purpose while disavowing the arbitration clause of the agreement—does not exist.” (*Mattson Technology, Inc. v. Applied Materials, Inc.* (2023) 96 Cal.App.5th 1149, 56 [citations and internal quotations omitted].)

The court decides whether the doctrine of equitable estoppel applies, notwithstanding the existence of a delegation clause in the arbitration provision. (See *American Builder’s Assn v. Auyang* (1990) 226 Cal.App.3d 170, 179-180; *Unimart v. Superior Court* (1969) 1 Cal.App.3d 1039, 1045; *Kramer v. Toyota Motor Corp.*, 705 F.3d 1122, 1127-1128 (9th Cir. 2013); *Young v.*

ByteDance Inc., 700 F.Supp.3d 808, 812 (N.D. Cal. 2023); *Atkins v. Amplitude, Inc.*, No. 24-cv-04913-RFL, 2025 WL 2521732, *2 (N.D. Cal. Sept. 2, 2025).)

The California Supreme Court recently addressed equitable estoppel in the Song Beverly Act context in *Ford Motor Warranty Cases*, 17 Cal.5th 1122 (2025). In that case, the plaintiff car purchasers signed a sales contract with various dealerships that contained an arbitration provision that required “you” (the purchaser) and “Seller-Creditor” (the dealership) to arbitrate claims arising out of the buyer’s “credit application, purchase, or condition of this vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who did not sign this contract)”. The plaintiffs sued Ford, the manufacturer, for violations of the Song Beverly Act and concealment/misrepresentation. The trial court denied Ford’s motion to compel arbitration based on the equitable estoppel doctrine, the Court of Appeal affirmed the trial court decision, and the California Supreme Court affirmed the Court of Appeal decision. In rejecting Ford’s equitable estoppel argument, the court held:

Plaintiffs’ causes of action against Ford do not depend on or invoke any of the terms of the sales agreements with the dealers, nor can they be construed to seek any benefit from those sales contracts . . .

Nevertheless, Ford seeks to suggest the suits are intertwined with the sales agreements. It urges that all its own warranties, whether express or implied, derive from the sale of goods, making them intertwined with the underlying sales contracts on that basis. It points to language in both the Song-Beverly Act and the California Uniform Commercial Code mentioning sales. The argument fails. Plaintiffs’ warranty claims “arise from a statutory scheme separate and apart from the contracts.” Under the Song-Beverly Act, “[u]nless disclaimed in the manner prescribed by this chapter, every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer’s and the retail seller’s implied warranty that the goods are merchantable.” Manufacturers may also make express warranties, which trigger various statutory provisions covering notice and repair or replacement of nonconforming goods. Warranties must also “conform to the federal standards for disclosure of warranty terms and conditions set forth in the federal Magnuson-Moss Warranty-Federal Trade Commission Improvement Act . . .” These obligations are not terms of the sales contracts themselves but are imposed by statute . . .

In these contracts, the dealers expressly disclaimed any assurance of warranty and made no representation as to warranties that “the manufacturer may provide.” Even though a buyer may receive a manufacturer’s warranty because it bought a manufacturer’s car from a dealer, “nothing in the California Uniform Commercial Code suggests that this automatically makes the manufacturer’s warranty a part of the sale contract between the buyer and the dealership.” . . .

(*Id.* at p. 1133-1135 [citations omitted].) The Ninth Circuit recently followed the rationale of *Ford Motor Warranty Cases* in *Olson v. FCA US, LLC*, 176 F.4th 612, 622 (9th Cir. 2026) [“Like the plaintiffs in *Ford Motor Warranty Cases*, none of Olson’s claims are founded in or intertwined with the terms of the lease agreement. Rather, Olson’s claims rely on rights created by California statutes and by a warranty provided directly by FCA. [FN] Thus, under *Ford Motor Warranty Cases*, FCA cannot use equitable estoppel to enforce the arbitration agreement in Olson’s lease”].)¹

¹ Plaintiff relies on the holding in *Ford Motor Warranty Cases*, *Olson*, or *Kostandian* (*infra*) while citing older cases that predate the decision. Defendant cites *Ford Motor Warranty Cases* and *Kostandian* only in its Reply.

Ford Motor Warranty Cases and *Olson* apply here. Plaintiff's claims are based on a warranty provided by Rivian Automotive and his rights under the Song Beverly Act. Further, as in *Ford Motor Warranty*, the seller here, Rivian, LLC, disclaimed implied and express warranties (in paragraph 13) of the Purchase Agreement. As a result, those warranties cannot be deemed to be part of the Purchase Agreement. The Court therefore declines to compel arbitration of Plaintiff's claims against Rivian Automotive based on the arbitration provision in the Purchase Agreement.

New Vehicle Limited Warranty Guide

Rivian Automotive also seeks to compel arbitration under the New Vehicle Limited Warranty Guide (the "Warranty Guide"), which is the warranty from Defendant Rivian Automotive for the Vehicle. The Warranty Guide states in part:

DISPUTE RESOLUTION - ARBITRATION, CLASS WAIVER

Any claim or dispute you may have related to your New Vehicle Limited Warranty or the duties contemplated under the warranty (among other disputes) will be arbitrated pursuant to the terms of the Final Agreement to Purchase. Under that agreement, you agreed to resolve disputes with Rivian by binding arbitration, rather than litigation in court. Please reference your Final Agreement to Purchase for full details. If you prefer not to submit your dispute to the BBB Auto Line Program described above, you may proceed, after undertaking reasonable and good faith efforts to settle the dispute directly, to binding arbitration or small claims court under the Final Agreement to Purchase. For your convenience, the relevant portion of the Final Agreement to Purchase is reproduced below."

(Bethlahmy Decl., Exh. B.) The Warranty Guide then recites in full paragraph 16 of the Purchase Agreement, which is the arbitration provision. Ms. Bethlahmy states in paragraph 6 of her declaration that "The New Vehicle Limited Warranty Guide contains the Arbitration Agreement incorporated by reference into the Rivian Motor Vehicle Purchase Agreement. At the time of purchase, Plaintiff was able to access the New Limited Warranty Guide using the hyperlink in Section 13 of the Rivian Motor Vehicle Purchase Agreement. The warranties are provided by Rivian, LLC's wholly-owned subsidiary, Rivian Automotive LLC. Attached as Exhibit B is a true and correct copy of the New Vehicle Limited Warranty Guide applicable to the subject vehicle."

Plaintiff does not argue that he did not sign the Purchase Agreement or that a copy of the Warranty Guide was not available to him when he signed the Purchase Agreement. Rather, Plaintiff argues that he did not expressly affirm his consent to the arbitration provision in the Warranty Guide and that his silence or inaction with respect to opting out does not equate to consent.

This issue was recently addressed in *Kostandian v. America Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872, in which the court distinguished *Norcia*, the case relied upon by Plaintiff and held that a car buyer was bound by a warranty booklet from the manufacturer that contained an opt out provision. The court applied the burden shifting analysis from *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, finding that the manufacturer satisfied its initial burden of establishing an agreement to arbitrate and the buyer failed to satisfy his burden of challenging that agreement. (see, *Id.* at pp. 882-884.)

Under the rationale of *Kostandian*, the Court grants Rivian Automotive's motion.

Rivian Automotive has presented evidence of the Warranty Guide and that the Warranty Guide was identified in the Purchase Agreement with a hyperlink for Plaintiff to access the Warranty

Guide when he purchased the Vehicle. Rivian Automotive has therefore satisfied its initial burden of showing an agreement to arbitrate under *Condee*. Like the buyer in *Kostandian*, Plaintiff fails to present any evidence to satisfy his burden of challenging the existence of the arbitration agreement.

He does not submit his own declaration to dispute Rivian Automotive's showing. Plaintiff submits only the declaration of his attorney, who states (without personal knowledge) that Plaintiff "did not contact Defendant and opt-out of Defendant's 2023 Warranty Guide arbitration provision, did not sign, or otherwise expressly affirm its consent to arbitrate warranty claims." (Declaration of Kristina Kousherian, ¶3.) Plaintiff does not dispute that he received the Warranty Guide or that the Warranty Guide attached with Rivian Automotive's papers is not an accurate copy.²

The Court is not persuaded by Plaintiff's additional argument that he cannot waive a jury trial under the Song Beverly Act's anti-waiver provision, Civil Code Section 1790.1, and was unable to locate any support in the papers to adopt that argument.

Work Orders

Because the Court grants the motion based on the language in the Warranty Guide, it need not address Rivian Automotive's additional argument that it can compel arbitration under the work orders that Plaintiff executed when he brought the Vehicle in for repair. (MPA, p. 1:19-20, 5:22-6:14.) Rivian Automotive does not fully develop this argument in any event, focusing its brief instead on the Warranty Guide and the Purchase Agreement. (MPA, Heading B, pp. 8:18-16:10.) A party's failure to adequately develop its argument with meaningful legal analysis forfeits the argument; the court is not bound to develop a party's argument for it. (See *Meridian Financial Services, Inc.* (2021) 67 Cal.App.5th 657, n. 15.) Rivian Automotive cannot make its substantive argument for the first time in its Reply as this does not give Plaintiff any meaningful opportunity to address it.

Stay

Rivian Automotive's motion to compel arbitration is granted. This action is stayed pending resolution of the arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

The matter is set for a Case Management Conference on February 23, 2027, at 9 a.m. in this department. The CMC set for August 18, 2026, is vacated.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

² Indeed, Plaintiff's claims against Rivian Automotive in this case are based on that very warranty.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/24/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0009291

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MITCHELL OCONNOR	
vs.	
DEFENDANT: MARIN M. ENTERPRISES	

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Defendant Marin M. Enterprises’ (“Defendant”) petition to compel arbitration is GRANTED IN PART as follows: Plaintiff is compelled to arbitrate his First through Ninth Causes of Action to the extent he brings them in his individual capacity. (9 U.S.C. § 4.) To the extent he brings these claims as a representative of a class of similarly situated people, these claims are dismissed based on the class action waiver in the parties’ arbitration agreement. The petition to compel arbitration is DENIED as to Plaintiff’s Tenth Cause of Action, which is the Private Attorneys General Act (“PAGA”) claim. All litigation in this case is stayed pending the outcome of the arbitration. (9 U.S.C. § 3.)

BACKGROUND

This is a class action for alleged employment law violations. Plaintiff alleges that he is a former employee of Defendant. (FAC, ¶ 8.) He brings eight causes of action for violations of the California Labor Code, both individually and on behalf of a class composed of certain current and former employees of Defendant. (*Id.* at ¶ 2.) Plaintiff asserts a cause of action under the Unfair Competition Law, also individually and on behalf of the class. (*Id.* at ¶ 2.) Finally, Plaintiff asserts a cause of action under the PAGA.

The Court now considers Defendant’s petition to compel Plaintiff to arbitrate all his individual claims against Defendant. Defendant simultaneously requests an order dismissing Plaintiff’s complaint to the extent it brings claims on behalf of others.

LEGAL STANDARD

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1281.) A written agreement to submit future controversies to arbitration “is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (*Ibid.*) California law provides that “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a